



General Rate (Public Utilities) Act 1977

1977 CHAPTER 11

An Act to make retrospective provision as respects orders made or having effect under section 35 of the General Rate Act 1967, and as respects the rateable value of gas hereditaments for the year 1976-77, to grant an indemnity for acts done in conformity with provision so made, and to make consequential and minor amendments of the law relating to the rating of public utilities and other bodies. [30th March 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The repeal by section 42 of, and Schedule 8 to, the Local Government Act 1974 of section 35 of the General Rate Act 1967 (mining, quarry and dock undertakings) shall not affect, and shall be deemed never to have affected, any order made or having effect as if made under the said section 35 before the date on which that repeal took effect. Validation of certain orders. 1974 c. 7. 1967 c. 9.

(2) Subject to subsection (3) below, any order made or having effect as if made under the said section 35 shall as from the said date be deemed to have been made under section 19 of the Local Government Act 1974, and accordingly any such order may be amended or revoked by an order under that section.

(3) The Docks and Harbours (Valuation) Order 1971 (which was made under section 35 of the General Rate Act 1967, and S.I. 1971/561.

S.I. 1976/535. which in respect of the year beginning on 1st April 1976 and subsequent years is superseded by the Docks and Harbours (Rateable Values) Order 1976) shall be revoked as from 1st April 1976.

1967 c. 9. (4) Section 36 of the General Rate Act 1967 (tin, lead and copper mines) shall cease to have effect, and in section 69(6) of the General Rate Act 1967 for the reference to section 35 of that Act there shall be substituted a reference to section 19 of the Local Government Act 1974.

Gas hereditaments. S.I. 1976/490. 2.—(1) Article 4 of the Gas Hereditaments (Rateable Values) Order 1976 shall be amended as provided by this section, and shall be deemed always to have had effect as so amended.

(2) In Article 4 (total rateable value of all gas hereditaments) for paragraph (i) there shall be substituted the following paragraph—

“(i) for the year 1976–77 be £60 million; and”.

(3) In the formula in paragraph (ii), in the definition of £X, for the word “calculated” there shall be substituted the words “fixed or calculated”.

Indemnity for rating authorities and officials. 3. Rating authorities, valuation officers and all other persons having any duty as respects valuation for rating or the levying of rates are hereby freed, discharged and indemnified from and against any consequences incurred by them by reason of any default where, if the preceding provisions of this Act had been in force at all relevant times, there would have been no default.

Amendment of section 19 of the Local Government Act 1974. 4.—(1) Section 19 of the Local Government Act 1974 (which supersedes section 35 of the General Rate Act 1967) shall be amended as provided by this section.

(2) In subsection (1) for the words “for determining” there shall be substituted the words “for fixing, or for determining”.

(3) In subsection (4) after paragraph (c) there shall be inserted the following words “and

(d) any provision of any Act so far as it amends an enactment within paragraph (a), (b) or (c) above”.

Citation and extent. 1975 c. 5. 5.—(1) This Act may be cited as the General Rate (Public Utilities) Act 1977, and, together with the General Rate Acts 1967 and 1970, and the General Rate Act 1975, may be cited as the General Rate Acts 1967 to 1977.

(2) The Acts specified in the Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

(3) This Act shall not extend to Scotland or Northern Ireland.

SCHEDULE

Section 5.

REPEALS

Chapter	Short title	Extent of repeal
1967 c. 9. 1972 c. 60.	General Rate Act 1967. Gas Act 1972.	Section 36. In Schedule 5, paragraph 4(3).